

Rajesh Kumar v. State of U.P.

Allahabad High Court · Division Bench · 28 May 2014 · Writ - C No. 30307 of 2014 · **Writ disposed; authority to decide application under s.126 and cl.6.8.**

HEADNOTE

A consumer facing a theft FIR sought a writ to have his reconnection and restoration application decided, including change of load from LMV-2 to LMV-6 and assessment of charges, and offered to deposit compounding charges. The Division Bench held that the grievance is to be redressed by the competent authority under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2005, and directed that authority to decide the application within two months.

FACTUAL SUMMARY

Rajesh Kumar faced an allegation of electricity theft and an FIR was lodged against him. His supply had been disconnected. He filed a writ petition seeking a direction that the distribution licensee decide his pending application for reconnection and restoration, treating the load as LMV-6 rather than LMV-2, and complete the assessment of charges. Before the Court he stated that he was ready and willing to deposit compounding charges assessed by the department for the alleged theft.

HOLDING-UNITS

INTERPLAY · EA2003::126

reconnection and assessment after theft allegation

HOLDING

Where a consumer facing a theft FIR seeks a writ for decision of his application for reconnection, restoration, load-category change and assessment of charges, the grievance is to be redressed by the competent assessing authority under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2005; the writ court will not decide those merits and will only direct that authority to dispose of the application. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment A consumer facing a theft FIR sought a writ to have his reconnection and restoration application decided, including change of load from LMV-2 to LMV-6 and assessment of charges, and offered to deposit compounding charges.. ¶ 1

s135-arrest-safeguards-and-compounding-remedy A consumer facing a theft FIR sought a writ to have his reconnection and restoration application decided, including change of load from LMV-2 to LMV-6 and assessment of charges, and offered to deposit compounding charges.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF RECONNECTION, RESTORATION, LMV-6 VERSUS LMV-2 LOAD, AND QUANTUM OF ASSESSMENT OR COMPOUNDING CHARGES

Left to the competent assessing authority under s.126 read with cl.6.8. ¶ 1